



# THE FEDERATED REPUBLIC

## Constitution

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### Preamble

*We, the people of the Federated Republic, recognising that legitimate government derives its authority solely from the consent of the governed; that individual rights precede and constrain all governmental authority; that transparency and accountability are prerequisites for democratic legitimacy; and that the diversity of our communities and the integrity of our federation are both worth protecting — do ordain and establish this Constitution.*

## Article I — Individual Sovereignty and Rights

### §1.1 Right to Courts and Legal Remedy

Every person may seek legal remedy for any rights violation before an independent court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not be used to make the right to a remedy illusory.

### **§1.2 Individual Sovereignty Floor**

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favour of individual liberty; government bears the burden of demonstrating constitutional authority for any limitation.

### **§1.3 Prohibition of Torture and Cruel Treatment**

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person within the Republic's jurisdiction may be subjected to any such treatment under any circumstances. This right is non-derogable under §1.26.b.

### **§1.4 Prohibition of Slavery and Forced Labour**

Slavery, involuntary servitude, and forced labour are absolutely prohibited. Lawfully imposed prison labour and compulsory military service under the terms established by statute do not constitute forced labour under this provision. This right is non-derogable under §1.26.b.

### **§1.5 Civil and Political Liberties**

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly for compelling public-order purposes, subject to strict scrutiny and without discriminating on the basis of viewpoint. No government may compel expression or penalise expression through intermediaries it controls or pressures. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others. The Legislature establishes by statute any framework for exercising these rights, provided that framework does not burden the right itself.

### **§1.6 Equality and Non-Discrimination**

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status in the provision of any governmental benefit, the imposition of any burden, or the application of any law. Distinctions rationally related to a legitimate governmental purpose that do not turn on these characteristics are permissible. Distinctions that do turn on these characteristics require compelling justification and are subject to strict scrutiny.

### **§1.7 Bodily Sovereignty and Privacy**

Every person holds sovereign authority over their own body. Medical decisions are the province of the individual and their chosen provider. The state may promote public health through information, licensing, and access; it may not compel medical decisions or penalise their exercise. Every person holds the right to privacy in their person, home, communications, and data. Searches, surveillance, and data collection by government require prior independent judicial authorisation based on specific, articulable grounds. The Legislature establishes by statute the warrant framework, subject to the requirement of independent judicial oversight. Communications and

stored data receive equivalent protection to physical premises. Encryption is a lawful means of protecting private information and may not be prohibited. No government may impose civil or criminal liability on any person solely for receiving, assisting access to, or providing accurate information about medical care that was lawful where received.

### **§1.8 Property and Security of the Home**

Every person holds the right to own property and to security in their home. The state may take private property for public use only upon payment of just compensation determined by independent process, not by the taking authority. The home may not be entered without the occupant's consent or prior independent judicial authorisation.

### **§1.9 Democratic Participation and Family**

Every citizen holds the right to vote, stand for office, and participate in the democratic processes of the Republic, subject to the eligibility requirements established in this constitution. Every person holds the right to marry and found a family, free from governmental discrimination on the basis of the characteristics listed in §1.6. Children born within and outside of formal partnership hold equal legal status.

### **§1.10 Right to Bear Arms**

The right to keep and bear arms for lawful purposes including self-defence is recognised. States may establish licensing and safety frameworks. No government may enact a categorical prohibition on the civilian ownership of arms. The Legislature and States may regulate the type, transfer, and carry of arms subject to the requirement that lawful ownership for self-defence remain available.

### **§1.12 Habeas Corpus**

Every person detained by public authority has the right to challenge that detention before an independent court. The detaining authority must produce the person and justify the detention within the period established by statute. No court may decline to hear a habeas corpus application. This right is non-derogable under §1.26.b.

### **§1.13 Rights of the Accused and Fair Trial**

Every person accused of a criminal offence holds: the right to be informed promptly of the charges; the right to counsel of their choosing, or to competent, adequately resourced counsel appointed at public expense where they cannot afford representation; the right to adequate time and means to prepare a defence; the right to examine witnesses; the right to silence without adverse inference; and the right to a speedy trial. No person may be penalised — by sentence enhancement or otherwise — solely for exercising the right to trial. Bail may not be used as punishment; its purpose is ensuring appearance and public safety, calibrated to individual circumstances. The Legislature establishes by statute the procedural framework for criminal proceedings, subject to the requirements of this provision. Where algorithmic systems are used as evidence, the accused has the right to examine the system's methodology.

### **§1.16 Right to a Public Trial**

Every person accused of a criminal offence has the right to a public trial before an independent court. Proceedings may be held in camera only to the minimum extent necessary to protect a compelling interest identified in advance by the court; the

existence of any proceeding may not be concealed. This right is non-derogable under §1.26.b.

#### **§1.19 Freedom from Retroactive Criminal Law**

No person may be convicted of an act that was not a criminal offence when committed, or subjected to a penalty greater than that applicable at the time of the offence. No criminal law may be applied retroactively to the disadvantage of the accused. This right is non-derogable under §1.26.b.

#### **§1.20 Double Jeopardy**

No person may be tried or punished twice for the same offence following a final acquittal or conviction. The Legislature defines by statute the scope of this protection, including its application across jurisdictions.

#### **§1.21 Social Assistance Floor**

Every Inhabitant is entitled to access the Republic's social state systems under Article X. No government may exclude any person from social assistance on the basis of the characteristics listed in §1.6. The Legislature establishes by statute the content and administration of social assistance, subject to the adequacy standards certified under §10.1.

#### **§1.22 Education**

Every child has the right to education adequate to enable full civic participation. The state must ensure this education is available and accessible. Parents hold the right to direct the education of their children within the framework of public educational standards. The Legislature establishes by statute the content and funding of public education, subject to the adequacy standard of genuine civic preparation.

#### **§1.23 Environmental Obligations**

Government holds an obligation not to cause environmental harm to persons within its jurisdiction through its own actions or through the actions of those it licences. The Legislature establishes by statute the framework for environmental protection, and may not enact statutes that systematically permit environmental harm to defined communities. This provision does not require the achievement of any particular environmental outcome; it requires genuine governmental action toward environmental protection proportionate to identified harms.

#### **§1.27 Right to Seek Asylum**

Every person who reaches the Republic's jurisdiction has the right to claim asylum and have that claim determined by an independent process under §6.4. The manner of entry does not affect this right. An asylum seeker is an Inhabitant of the Republic from the date of claim and holds all rights in this Article.

#### **§1.28 Non-Refoulement**

No person within the Republic's jurisdiction may be returned, expelled, or extradited to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the nature of the receiving territory's government. This right is non-derogable under §1.26.b.

#### **§1.26 Emergency Derogation**

No emergency — however severe — suspends the Individual Sovereignty Floor in full. Temporary derogation of certain rights is permitted only under the strict conditions of

this section; the rights enumerated in §1.26.b may not be derogated under any circumstances.

#### **§1.26.a Emergency Derogation — Declaration Requirements**

Emergency derogation of Article I rights requires a precisely structured declaration specifying: the nature of the emergency, which rights are limited, the geographic scope, the duration, and the review mechanism. The specificity requirement prevents open-ended emergency licenses — the government must commit in advance to exactly what it is doing, for how long, and where. Blanket declarations are constitutionally invalid. The declaration is published to the NRS immediately. An undisclosed emergency is not a constitutionally recognized emergency. Automatic expiry (§1.26.d) without renewal.

#### **§1.26.b Non-Derogable Rights**

These six rights are absolute under any circumstances: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.12); the right to a public trial (§1.16); no retroactive punishment (§1.19); and non-refoulement (§1.28). No emergency declaration, executive order, or legislative act may derogate any of these rights. They are non-derogable by their nature — their value derives precisely from the fact that they hold under the worst circumstances, not only the ordinary ones.

#### **§1.26.c Inspectorate Continuity**

The three Inspectorates continue to operate with full constitutional authority throughout any emergency — they cannot be suspended or have their mandate reduced by emergency declaration. Accountability infrastructure is precisely most important when emergency powers are active.

#### **§1.26.d Automatic Expiry and Judicial Review**

Emergency measures lapse automatically at the expiry of the Declaration. Judicial review of any emergency measure is available to any citizen at any time, and courts may rule during the emergency that a specific measure is unconstitutional.

#### **§1.26.e No Permanent Emergency**

No emergency measure may be made permanent by legislative act. Every emergency measure lapses automatically at the expiry of the Declaration unless re-enacted through the ordinary legislative process. The Legislature may not extend an emergency measure by re-declaration within 60 days of its expiry, or at all unless a 2/3 majority certifies continued necessity.

### **§1.31 Continuity of Constitutionally Mandated Offices**

For every office established by this Constitution with a fixed term, the confirmed or elected successor's term begins at the precise moment the incumbent's term concludes — no gap exists between the end of one term and the commencement of the next. The selection and confirmation processes for each such office must be initiated and completed with sufficient lead time to ensure seamless succession before the incumbent's term ends; failure to do so is a constitutional compliance breach certified by the LI. Any person serving in an acting capacity for a constitutionally mandated office during an unexpected vacancy must be otherwise eligible for that office — possessing all substantive qualifications for the role — with the sole exception of not having completed the applicable confirmation or election process. The acting mechanism for each office is defined in the provisions governing that office.

## Article II — The Dual Executive

### §2.1 The President — Domain and Term

The President holds enumerated authority over: military command and force employment; foreign affairs and treaty negotiation; intelligence; trade agreements subject to §2.4; and appointments within the presidential domain. Presidential authority is enumerated; the PM's authority is residual. The President serves a single non-renewable term of four years. Upon expiration of the term, all authority transfers immediately to the incoming President. The outgoing President retains no access to classified information, government systems, or official functions beyond the day of transfer.

### §2.2 Military Authorization Framework

The President may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, all use of military force requires legislative authorization. The President must notify both chambers and the PM promptly upon any use of force; the Legislature defines 'promptly' by statute. Legislative authorization expires unless affirmatively renewed at intervals the Legislature defines by statute; the constitutional default on expiry is cessation of all operations — the burden is always on authorization, never on termination. Military expenditure requires PM certification throughout; expenditure without PM certification is void. All military operations must state and be consistent with an authorized purpose under §12.1. All operations are published to the NRS.

### §2.3 Presidential Intelligence and Veto

The President directs foreign intelligence. No intelligence operation may be conducted against Republic citizens within Republic territory on the President's authority; such operations require independent judicial authorisation. The EI reports any order authorising domestic intelligence operations without judicial authorisation to the NRS. The President may veto legislation that raises a genuine constitutional concern within the President's security domain — military operations, intelligence, treaty obligations, or border security. A general or speculative security connection is insufficient. Either Speaker may request an EI assessment of whether the veto falls within the President's defined domain; the EI publishes its finding to the NRS within 48 hours.

### §2.4 Presidential Domain Operations

The President negotiates and concludes trade agreements. PM written concurrence is required only for provisions imposing national treatment obligations within Republic territory, provisions requiring new domestic legislation, or provisions creating direct obligations on domestic persons. All other trade terms are within the President's sole authority. Where PM concurrence is withheld on a specific provision, that provision may be transmitted to the House as ordinary legislation while the remaining agreement proceeds to Senate ratification independently. The President nominates senior domain officers — Director of Intelligence, Secretary for Foreign Affairs, Secretary for Defense — from a pool of qualified candidates maintained by the Elections Panel. The Legislature defines qualifications and confirmation procedures for each office by statute; Acting appointments may be made pending confirmation for the period and under the conditions the Legislature defines. Indefinite circumvention

of Senate confirmation through Acting appointments is constitutionally prohibited. All nominations and appointments are published to the NRS. Where domain of a proposed action is disputed, the JEC under §2.14 is the first forum. Pending resolution, the PM's residual authority governs except for matters expressly enumerated in §2.1. During active military operations, the President's domain governs operational decisions; either executive may petition the SC for an expedited domain determination.

### **§2.5 The Prime Minister — Domestic Executive Domain**

The PM holds residual executive authority over all functions not enumerated as Presidential. To be eligible, a person must have held citizenship for the period established by statute. The PM answers to the House through the confidence mechanism and does not require presidential confirmation for the exercise of the domestic domain. The PM's domestic authority includes: all domestic policy and regulatory frameworks; the annual budget, which must originate with the PM and pass the House; certification of military expenditure; the civil service; and administration of the social state under Article X. The PM may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to the constraints of Article I and renewable House approval at intervals defined by statute. The President has no role in domestic emergencies. The PM has the right to be informed on national security matters that bear on domestic interests; no classification may be used to withhold such information from the PM where it affects the exercise of the domestic domain.

### **§2.6 PM Accountability and Formation**

The PM is accountable to the House. The House may remove the PM only through a constructive vote of no confidence: a single vote that simultaneously removes the sitting PM and installs a named replacement, by absolute majority of full seated House membership. A confidence vote that does not name and elect a successor has no constitutional effect. No person may serve more than 8 consecutive years as PM, and no more than 12 years in total across all periods of service. Both limits operate simultaneously; the stricter governs at any given moment. The House elects the PM by absolute majority within the period defined by statute following any general election or vacancy. If the House does not elect a PM within that period, the most senior confirmed Cabinet Minister continues as Caretaker PM. The Senate may, by 2/3 supermajority, designate a serving House member as PM if the House has failed to elect one within the statutory period; House election of a PM by absolute majority terminates any Senate designation. Where the PM is temporarily unable to exercise authority, the most senior confirmed Cabinet Minister by continuous length of service — as certified by the JI — serves as Caretaker PM with authority limited to maintaining existing policy and emergency functions; Caretaker status ends when the PM resumes their duties or a new PM is confirmed by the House.

### **§2.7 PM Legislative Instruments**

The PM may return any bill with a written statement of objection specifying constitutional, fiscal, or operational grounds. The statement is published to the NRS. The Legislature may override by 2/3 of both chambers simultaneously. The suspensive veto may not be used on the annual budget, bills implementing a constitutional obligation, or emergency legislation. If the Legislature does not hold an override vote within the period defined by statute, the bill lapses. The PM may also object on specific solvency grounds — the bill would cause or materially worsen a structural deficit. Requires MA assessment; the House may override by simple

majority after receiving the assessment. If the PM neither signs nor objects within the legislative review period, the bill is enacted. Silence is not a veto. Both executives review legislation concurrently from the date of final passage; periods and procedures are defined by statute.

### **§2.8 Duty of Refusal**

No civil servant or military member may comply with an order from either executive that would require violation of any constitutional provision or statute. Refusal of such an order creates no civil or criminal liability and is no basis for dismissal or penalty. The refusing person may report the order to the EI, which may investigate and publish findings to the NRS. Any penalty imposed for a lawful refusal is itself a constitutional breach. The Legislature establishes by statute the framework for protecting and supporting civil servants who exercise this duty.

### **§2.9 Presidential Succession and Incapacity**

Full succession activates on Presidential death, resignation, removal, or certified permanent incapacity. Authority transfers first to the Senate Speaker, then to the Senate Deputy Speaker, and then to the most senior member of the Senate Armed Services Committee. A successor serves the remainder of the current presidential term; service by succession does not consume the successor's own eligibility to stand at the next election. Where the President is unable to exercise authority, the EI and LI jointly assess capacity and, on joint certification, Acting Presidential Authority transfers to the Senate Speaker without vacating the Speaker's Senate seat. Acting authority ends when the President publishes a restoration declaration to the NRS. Where Acting Presidential Authority extends beyond the period defined by statute, the Inspectorates reassess; on joint certification of permanent incapacity, full succession activates.

### **§2.10 Executive Transparency**

Both executives must publish all official acts — orders, certifications, vetoes, objections, determinations, and refusals to certify — to the NRS within the period defined by statute. No executive may classify, delay, or suppress publication of an act this constitution requires to be published. Acts of non-consent — refusals to certify, objections, escalation denials, and declinations to act within a constitutional mandate — carry the same attribution and publication requirements as acts of authority. An executive who declines certification, withholds approval, or refuses to perform a constitutionally required function is constitutionally responsible for that act to the same degree as an executive who issues an order. The NRS record of every executive act of non-consent is permanent, attributed to the individual officer, and may not be reclassified or removed. A late-published act is not void, but late publication is a constitutional compliance breach certified by the EI.

### **§2.11 Emergency Governance**

Where the House is unable to function for an extended period — as defined by statute — the Senate may assume joint emergency legislative authority for three functions only: election administration, social state funding continuity, and active national security obligations. All Senate emergency actions require co-signature of the Caretaker PM and are published to the NRS. This authority expires automatically when a new House is seated. In catastrophic circumstances where the Legislature cannot convene, expedited activation is available on joint certification by the Caretaker PM and the most senior available SC justice published to the NRS.

### **§2.12 Clemency**

Each executive holds clemency authority within their own domain only. Presidential clemency covers military law and national security offenses. PM clemency covers domestic offenses. Neither may pardon offenses within the other's domain. Self-clemency is absolutely prohibited for all constitutional officers; an attempted self-clemency is void and itself a constitutional violation. No clemency may be granted for offenses in which the granting executive was a participant or direct beneficiary. Before any grant, the EI publishes a factual background report to the NRS. A clemency grant made before the EI report is published is void and of no legal effect. Every petition, report, and grant or decline is published permanently to the NRS. Every grant is subject to cross-chamber transparency review. Group amnesty requires legislative action; no executive may grant group amnesty.

### **§2.13 Presidential Removal**

The President may be removed on two independent tracks. Under the legislative track, 2/3 of both chambers simultaneously, following joint LI and EI certification of constitutional breach, demonstrated permanent incapacity, or conviction for a disqualifying offense. Under the popular track, a Senate majority may refer the question to a national recall referendum administered within the period defined by statute. The President is removed if the referendum achieves the affirmative threshold and participation level defined by statute. A failed referendum may not be re-initiated within the same presidential term. The Senate Speaker holds Acting Presidential Authority from the date of Senate referral until referendum certification, without vacating their Senate seat.

### **§2.14 Joint Executive Council**

The Joint Executive Council comprises the President's domain officers and the PM's Cabinet ministers meeting jointly as a standing cross-executive coordination body. The Council is the primary forum for matters that cross executive domains. The Council makes recommendations and coordinates positions; it does not exercise executive authority. A summary record of each session is published to the NRS within the period defined by statute. The existence and general subject of each session may not be classified. Operational procedures are defined by statute. In a cross-domain emergency — a crisis whose effective management requires unified operational authority across executive domains — either executive may propose a temporary operational lead designation to the JEC; the other executive must respond in writing within twelve hours; concurrence makes the designation effective and it is published to the NRS immediately with both executives' attributed positions; objection refers the dispute to the SC under §2.15 for expedited review. A temporary lead designation does not extinguish the other executive's domain authorities or certification functions — it assigns operational coordination, not constitutional supremacy. Judicial review of any lead designation is conducted after the emergency is stabilized, not during it; courts do not govern active crisis management.

#### **§2.14.a Coordination Failure Protocol**

Where both executives are acting within their respective domains but their actions are materially incompatible — creating an operational deadlock not resolvable as a domain dispute under §2.4 or an emergency under §2.14 — either executive may declare a coordination failure by written NRS notice. Upon declaration, the matter is transmitted simultaneously to the House Speaker and Senate Speaker jointly, and the JEC has 14 days to produce a joint resolution. The Legislature may resolve the deadlock by concurrent resolution of both chambers at any point within 30 days of the

declaration — a concurrent resolution under this provision binds both executives to its terms for the duration of the impasse only and does not alter permanent domain boundaries. A JEC joint resolution published within the 14-day window closes the process; the Legislature takes no further action. Where neither the JEC nor the Legislature acts within 30 days of the declaration, the PM’s residual authority governs until either the executives reach agreement or the Legislature acts.

### **§2.15 Constitutional Continuity**

Where a conflict between constitutional actors creates a risk of suspension of lawful governance or constitutionally mandated essential services, the applicable constitutional default is continuity of lawful governance at existing scope, pending formal resolution. No constitutional actor may use a refusal to certify, approve, or coordinate as a mechanism to achieve the functional suspension of a constitutionally mandated obligation. The burden of justifying a disruption to essential government functions falls on the actor whose conduct creates the risk of disruption — not on the actor seeking to maintain continuity. The SC holds expedited review jurisdiction over any constitutional dispute in which either executive, either chamber, or the JIC certifies that continuity of lawful governance is at immediate risk; the Court must act within seven days of such certification. Continuity protections apply to: military operations with active legislative authorization; social state obligations; Inspectorate operations; NRS availability; and electoral administration.

## **Article III — The Legislature**

### **§3.1 The Legislature**

The Legislature comprises two chambers: the House of Representatives and the Senate. All legislation originates in the House. The Senate reviews, may amend within the subject matter of the bill, and must act on every House-passed bill within the period defined by statute — inaction triggers automatic deemed approval. In the absence of a statutory period, the Senate must act within 90 days of receipt. Neither chamber may indefinitely delay business assigned to it by this constitution.

### **§3.2 The House of Representatives**

The House is the proportionally elected chamber. Both States and Territories send voting members; there are no second-class members. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory. The constituency divisor is established and may be adjusted by statute, subject to the minimum-seat guarantee. The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment. The LI audits the census and allocation process. The House Speaker is elected by the House from its own members by absolute majority and does not hold a place in the presidential succession line. Quorum is a majority of full seated membership. The House establishes its own internal procedures. Members serve two-year terms. No member may serve more than six consecutive terms without sitting out one full electoral cycle; no cumulative lifetime restriction applies after the cooling-off period. Legislative compensation is set by independent formula, not by the Legislature itself; all member financial interests are disclosed to the EI and published to the NRS. Mid-term vacancies in House seats are filled by special election administered by the Elections Panel; the Legislature establishes timing and procedures by statute, ensuring no seat remains vacant beyond a reasonable period.

### **§3.3 Electoral Districts**

States draw their own House district maps subject to five criteria: population equality within reasonable tolerance; geographic contiguity; compliance with §1.6 non-discrimination; no intentional dilution of minority voting power; and reasonable compactness. Maps may not be drawn using partisan registration data, voting history data, incumbent residence, or racial composition as a primary criterion. The LI reviews all maps for compliance and publishes findings to the NRS. Where a map fails, the Elections Panel of the Digital Infrastructure Commission draws an interim compliant map that takes effect at the next election and is retired when the State submits a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen, State government, or parliamentary minority may challenge a map before the SC.

### **§3.4 Legislative Standards**

Every bill must address a single, clearly defined subject. A court finding that a bill addresses multiple unrelated subjects voids the act. The full text of every bill must be published to the NRS for a minimum period defined by statute before any final passage vote; a substantially amended bill resets the clock. The Legislature must sit for a minimum number of days per year defined by statute; emergency sessions may be called by the PM or by petition of 1/3 of either chamber. Members must disclose all financial interests to the EI. The Legislature may establish a joint ethics committee with authority to sanction and refer members; removal requires 2/3 of the relevant chamber following a published EI finding.

### **§3.5 The Senate**

The Senate comprises two senators per State regardless of population, elected for six-year staggered terms. No senator may serve more than two consecutive terms without sitting out one full term; no cumulative lifetime restriction applies after the cooling-off period. The Senate Speaker is elected by senators and may not serve more than three consecutive sessions as Speaker without sitting out one session. The Senate defines its own internal procedures. Standing committees must maintain balanced composition; no party may hold all seats on any standing committee. The Senate holds exclusive authority over: judicial confirmation; treaty ratification by 2/3 of full seated membership; and, in the absence of a functioning Elections Panel, administration of the presidential election. The Senate may not initiate legislation; all bills originate in the House.

### **§3.6 Treaty Ratification and Withdrawal**

Treaty ratification requires 2/3 of the full seated Senate. Where a treaty fails ratification, standalone domestic provisions may be transmitted to the House as ordinary legislation unless the treaty is bilateral and its obligations are interdependent, in which case it must be renegotiated or abandoned in full. The President initiates treaty withdrawal by published NRS notice. For general treaties, the Senate may block withdrawal by simple majority within the notice period; if the Senate does not act, withdrawal takes effect. For mutual defense treaties, the Senate must affirmatively confirm withdrawal; if the Senate does not confirm, the treaty remains in force. Indigenous treaties under Article XIV may not be unilaterally withdrawn. All withdrawal actions are published to the NRS.

### **§3.7 Legislative Process and Passage**

Bills pass by absolute majority of the full seated membership of both chambers. Higher thresholds apply to constitutional amendments, veto overrides, removal

proceedings, and other matters specified in this constitution. The presiding officer of each chamber must publish the final text of every enacted law to the NRS within the period defined by statute. All prior versions, committee reports, Inspectorate findings, and veto records are indexed alongside the enacted text. Where the constitution requires the Legislature to enact specific legislation and the Legislature fails to do so, the LI publishes a non-compliance finding; the mandate becomes justiciable in the SC; and, for mandates tied to constitutional rights, affected parties may bring direct constitutional claims.

### **§3.8 Legislative Oversight**

All three Inspectorates have full access to legislative records, committee deliberations, voting records, and draft legislation; the Legislature may not withhold records from the Inspectorates. The LI publishes a constitutional compliance analysis of any enacted law during the legislative review period; members may request LI analysis of any bill at any stage; the LI does not initiate pre-enactment review on its own motion. Standing committees are mandated for constitutionally assigned functions and may not be abolished while they hold a constitutional mandate. Legislative privilege protects members from civil proceedings arising from acts performed in their legislative capacity but does not extend to criminal conduct or acts the EI has certified as constitutional breaches.

### **§3.9 Independent Statutory Agencies**

The Legislature may establish statutory agencies operating independently of both executives. Where this constitution assigns a function to a statutory agency, the Legislature must establish it; the relevant Inspectorate administers the function on an interim basis until the agency is established. Agency officers hold fixed terms and are nominated from a JI-maintained registry of qualified candidates; the PM nominates from that registry and Senate confirms. Removal requires a for-cause finding published by the JI and a 2/3 vote of both chambers; neither executive may unilaterally remove an independent agency officer.

#### **§3.9.a Independent Officer Removal — Judicial Track**

For independent statutory officers, the Judicial Track under §8.15 is available where standard legislative removal appears unreachable due to political gridlock. Two of the three Inspectorates jointly certify for-cause grounds and petition the SC; the process then follows §8.15 Judicial Track in full.

### **§3.10 Impeachment**

The House may impeach officers serving in the presidential executive domain and inferior court judges. The President is removed exclusively under §2.13; the PM under §2.6; SC justices under §4.2; legislative members by their own chamber. A 1/3 House minority may open an inquiry; full impeachment requires absolute majority of full seated membership. Articles of Impeachment are published permanently to the NRS and transmitted immediately to the Senate. The subject official continues in office pending the Senate trial, relieved of executive functions from the date of House passage. The Senate trial is public and recorded on the NRS. Conviction and removal requires 2/3 of full seated Senate membership; the Senate may additionally bar the convicted from future federal office by simple majority. Acquittal is final on the same conduct. Criminal liability remains separately pursuable.

## **Article IV — The Judicial Architecture**

#### **§4.1 Court Structure**

The Republic's judiciary operates at three levels: district courts, appellate courts, and the Supreme Court. The House may establish, abolish, and define the jurisdiction of inferior courts by statute. States may maintain specialised court structures; any constitutional question arising in any proceeding may be referred to the SC. Courts act only on cases brought by a party with a concrete, articulable injury. Judges may not issue advisory opinions. Organizational standing is available where at least one member would individually have standing and the claim is germane to the organization's established constitutional purpose.

#### **§4.2 Judicial Appointments and Independence**

The PM nominates inferior court judges from a pool of qualified candidates maintained by the Elections Panel. The Legislature defines qualifications for inferior court judges by statute; the JI certifies eligibility of each pool applicant against those qualifications. The PM must nominate within the period defined by statute following a vacancy. The Senate confirms by a supermajority defined by statute. Inferior court judges serve a single non-renewable term of 15 years and may be removed only for cause. The Legislature may establish a mandatory retirement age by statute, not below 70. Judicial removal occurs through three tracks: legislative removal by 2/3 of both chambers following EI certification of constitutional breach or demonstrated incapacity; judicial discipline through a process established by statute under SC oversight; or criminal conviction for a disqualifying offense. No public official may direct, threaten, or seek to influence a judge's decision in any pending matter. Judicial compensation may not be reduced during a judge's term.

#### **§4.3 The Supreme Court**

The Supreme Court consists initially of nine justices organised into three staggered classes, each serving a single non-renewable 12-year term. The Legislature may increase the number of justices by statute requiring 2/3 of both chambers; any seat added must be filled within 18 months or expires by operation of law. The Legislature may decrease the number only by 2/3 of both chambers, effective through natural attrition only, never by removing a sitting justice. The Court may not fall below three justices. Where the Court is equally divided, the challenged ruling of the lower court or government body stands.

#### **§4.4 Supreme Court Selection**

SC justices are nominated by the PM from the open SC Candidate Registry maintained by the Elections Panel under §8.4.e — any eligible citizen who applies and meets the qualification criteria is entered. The PM nominates within the period defined by statute following a vacancy (not to exceed 90 days for scheduled vacancies, 60 days for mid-term vacancies). The JI confirms registry status and publishes the nominee's full record. The Senate must vote within the period defined by statute following JI publication of the nominee's record (not to exceed 120 days); no deemed confirmation applies, but failure to vote within that period is certified by the LI as a constitutional compliance breach. If the Senate declines, the PM nominates again within the period defined by statute. The confirmed justice serves a single non-renewable 12-year term from the date of confirmation. A mid-term replacement serves only the remainder of the original term. At founding, the nine initial justices are confirmed simultaneously and assigned to their three classes by public lot. The Legislature must by statute establish a recusal framework; in the absence of statute, a justice must recuse where impartiality could reasonably be questioned. Upon any SC vacancy, the most senior Appellate Court judge by continuous service is

automatically designated Temporary Associate Justice within 5 days — without nomination or confirmation — holding full voting rights until the vacancy is filled. A Temporary Associate Justice may not stand as a candidate for the seat they are temporarily filling.

#### **§4.3.a Supreme Court Quorum**

A majority of the SC's seated justices — including any Temporary Associate Justices — constitutes quorum for ordinary decisions. Constitutional questions require a minimum of five justices regardless of total seated membership. Where insufficient Appellate Court judges are available for Temporary Associate Justice designation, the most senior federal District Court judges by continuous service fill remaining positions in order on the same temporary basis.

#### **§4.4.a Senate Bypass — Public Confirmation**

Where the LI has certified a Senate breach under §4.4, the PM may — with 2/3 House consent — place the serving Temporary Associate Justice on the next federal electoral period ballot for public confirmation. Confirmation requires 60% of votes cast; the justice's seniority-based designation is published to the NRS as ballot information. If confirmed, the justice serves the remainder of the original term and the Senate's confirmation authority for that seat is extinguished. If not confirmed, the justice steps down, the next most senior Appellate Court judge auto-designates, and the process may repeat. Senate confirmation of a registry nominee before the public vote is certified ends the bypass immediately.

#### **§4.5 Judicial Review and Scope**

Courts have authority to declare legislative acts, executive orders, and administrative decisions unconstitutional and void. No political actor may override a constitutional ruling. The SC identifies the constitutional defect; the Legislature may respond by enacting legislation that addresses it. Courts decide constitutional questions, not policy questions — a statute that is constitutionally permissible but poor policy is not the court's concern. Where a statute is ambiguous, courts apply the interpretation most consistent with this constitution. Courts may not rewrite clear statutory language. Inspectorate findings published to the NRS are admissible and must be given due consideration; where a court's conclusions differ from a prior finding, the court must address the inconsistency in its written decision. The SC has original jurisdiction over constitutional disputes between States, between a State and the federal government, and over constitutional challenges to federal statutes. A four-justice emergency panel drawn by rotation holds jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute.

#### **§4.6 Judgment Recognition**

Judicial judgments, official records, and authenticated documents are recognised across all jurisdictions within the Republic. A judgment valid in one jurisdiction must be recognised in all others. Non-recognition grounds are exhaustive: the issuing court lacked jurisdiction; the judgment was obtained by fraud; or enforcement would require an act defined by the Legislature as categorically unenforceable. Judgments contrary to Article I are void by operation of §15.6. A judgment or status order published to the NRS is self-authenticating in any Republic court and takes immediate effect without re-registration. No State or Territory may discriminate in recognition based on the nature of the parties or the subject matter recognised by the issuing jurisdiction.

#### **§4.7 Jury Service**

Citizens are required to serve on juries when called. Jury service is compensated at a rate the Legislature defines by statute. Unexcused refusal is subject to civil consequences the Legislature defines. Jury service does not constitute forced labour under §1.4.

## **Article V — Citizenship and National Identity**

#### **§5.1 Citizenship**

Citizenship is acquired by birth, by parentage, or by naturalization. A child is automatically a citizen if at least one parent is a citizen or legal resident at birth. Children of citizens are Inhabitants from birth with full Article I protections; full citizenship rights activate at 18. Where a child would otherwise be stateless, citizenship is granted regardless of parental status. No citizenship may be stripped from a natural-born citizen. Where a child born on Republic territory would hold no other citizenship, they are eligible for legal residency from birth, with all Inhabitant years counting toward the naturalization residency requirement.

##### **§5.1.c Naturalization and Service Path**

A legal resident may earn citizenship after the continuous residency period and clean legal record established by statute, upon passing the Constitutional Logic Test (CLT). A legal resident may alternatively earn citizenship through honorable completion of military or national service. The CLT tests knowledge of constitutional principles and civic structure — not political opinions or cultural loyalty. The CLT is administered by a statutory independent agency under §3.9. No citizenship may be revoked as punishment once granted; the Republic may not manufacture statelessness as a punitive tool.

##### **§5.1.f Derivative and Founding Status**

A child born before a parent acquired legal residency or citizenship, who accompanies that parent to the Republic within a Legislature-defined window, receives derivative status. All individuals holding voting rights on Day Zero of ratification are automatically granted full citizenship as founding members of the Republic without testing or application.

#### **§5.2 Legal Resident Rights**

Legal residents hold a Residency Credential allowing them to work, enter contracts, own property, and access social state systems under Article X. They hold all Article I rights as Inhabitants. They do not hold federal voting rights or the right to stand for federal office. No child of a citizen or legal resident may be deported regardless of the child's own documentation status.

#### **§5.3 Custodial Care of Citizen Children**

Where a parent or guardian who is the primary caregiver of a citizen child is removed from the Republic, the Republic accepts responsibility for that citizen child — housing, care, and connection to remaining family. The Republic may not separate citizen children from their sole caregivers without providing for them. Where a removal order would deprive an Inhabitant child of their primary caregiver, that order is stayed pending resolution of custodial arrangements.

## Article VI — Immigration and Residency

### §6.1 The Dual-Gate System

Every immigration application must clear two sequential gates: Gate 1 (State sponsorship) and Gate 2 (federal certification). Legal residency requires passing both gates. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification covers four statutory categories only: identity verification, criminal history, national security assessment, and self-sufficiency or support guarantee — no ideological screening or nationality-based quotas. Any denial must specify the precise ground in writing. Once an applicant clears both gates, the President must ministerially issue residency credentials; Presidential interference with credential issuance is constitutionally prohibited. The Legislature may establish a Federal Sponsorship Category where federal agencies serve as Gate 1 sponsors for applicants serving a defined federal interest; this does not bypass Gate 2. The Legislature may set aggregate limits on total applications received and processed in any period, provided limits are applied without §1.6 discrimination. Asylum proceedings under §6.4 are exempt from Gate 1 — no State's refusal to sponsor can extinguish a §1.28 asylum claim.

### §6.2 Enforcement, Removal, and Appeals

Only the federal government may remove individuals from the Republic. Removal occurs only for violations of laws the Legislature has defined — executive detention without statutory basis is unlawful detention subject to habeas corpus. Gate 2 denials are judicially challengeable on three grounds: criterion outside the four certified categories; discriminatory grounds contrary to §1.6; or procedural violation affecting the outcome. Gate 1 denials are not reviewable on the merits of the sponsorship decision but are challengeable as constitutional violations where made on §1.6 discriminatory grounds — a court finding discrimination may order reconsideration free of discriminatory criteria but may not compel sponsorship. Where Gate 2 is denied on national security grounds, a reviewing court may examine the classified assessment in camera to determine whether it constitutes a credible, specific, and documented security concern.

### §6.4 Asylum and Protection

Asylum proceedings operate on a separate constitutional track from the dual-gate system. Any person who files an asylum claim under §1.28 is an Inhabitant from the date of filing — entitled to Article I protections and social state access. Claims must be determined before any removal order takes effect. Where the Asylum Court grants protection, the person receives federal residency credentials by operation of that grant; Gate 1 and Gate 2 are not required conditions. The manner of entry does not affect the right to claim asylum or have that claim determined. No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted. Asylum proceedings must provide: a qualified adjudicator, interpreter access, the right to present evidence and witnesses, a written decision with grounds, and a right of appeal — regardless of point of entry. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

#### §6.4.c Asylum Court

The Asylum Court is a federal judicial institution constitutionally independent of both executive branches. Its judges are appointed under §4.2 and hold full tenure

protections. The Legislature may not establish any asylum determination body as a subdivision or instrumentality of either executive branch.

#### **§6.4.e Unresolvable and Security Cases**

The Legislature must define a minimum status, material conditions, and periodic judicial review for persons subject to final removal orders that cannot be executed — because the destination country will not accept them or execution would violate §1.28. Indefinite stateless detention is constitutionally prohibited. Where the Asylum Court grants §1.28 protection to a person who poses a documented security threat, removal remains constitutionally barred and indefinite unreviewed detention is not available. Detention is permitted subject to: mandatory judicial review by an independent federal court within 90 days of initial detention; mandatory review every 180 days thereafter; statutory minimum conditions of humane treatment; and no detention beyond 5 years without annual SC review.

#### **§6.4.h Unaccompanied Minors**

An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.28 protection. A federal legal guardian must be appointed within 24 hours. No unaccompanied minor may be detained in a facility not specifically designated and resourced for children.

## **Article VII — Elections**

### **§7.1 The Right to Vote**

Every eligible citizen holds the right to vote in federal elections and the right to have that vote counted. Government at every level is prohibited from taking any action that makes voting more difficult, less accessible, or less secure. No law, rule, administrative decision, or practice that reduces access to the franchise is constitutionally valid. The state holds an affirmative obligation to make voting as accessible as possible consistent with security — it may not compel citizens to vote, but it must provide conditions in which doing so is genuinely possible. Federal election periods are public holidays.

### **§7.2 Presidential Election System**

The President is elected through two concurrent requirements: a national RCV majority and a State plurality qualification. A candidate wins outright by satisfying both. Where a candidate's national RCV majority reaches or exceeds 60% of active ballots, the State plurality requirement is waived. Where no candidate wins outright, a runoff is conducted between the two candidates with the highest national first-preference totals, determined by national RCV only with no State plurality requirement. The Elections Panel of the Digital Infrastructure Commission administers and certifies all presidential elections. Territory citizens vote in presidential elections and their votes count in the national RCV total; Territories are not included in the State plurality calculation.

#### **§7.2.b State Plurality Requirement**

A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. The Elections Panel certifies State-by-State first-preference results as part of overall election certification. Certification is final and may be challenged only before the SC

within 14 days of certification. No transfer of presidential authority may be delayed beyond the constitutional transition provisions.

### **§7.3 Federal Elections**

Federal elections are held at regular intervals: House elections every two years; Senate elections on the staggered six-year cycle; presidential elections every four years. All federal elections use Ranked Choice Voting — majority required, not plurality — except the presidential election which follows §7.2. The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors. All federal elections, referenda, and confirmation votes are administered by the Elections Panel of the Digital Infrastructure Commission using the National Voting System, free from executive interference. The President may not declare, postpone, or influence the scheduling of elections — including declaring emergencies that have the effect of delaying them. No State may take any action that reduces NVS access, functionality, or availability within its territory. States may offer early voting, mail-in ballots, and alternative participation methods provided all methods connect to the NVS and meet its constitutional standards. Special elections for vacancies are administered by the Elections Panel under procedures established by statute.

## **Article VIII — Inspectorates and Accountability**

### **§8.1 Three Inspectorates**

The Republic maintains three constitutionally independent Inspectorates — Legislative (LI), Executive (EI), and Judicial (JI) — each selected by bodies other than those it oversees. The Inspectorates hold an information-only mandate: they publish findings but do not issue binding orders. Each Inspector General serves a 10-year non-renewable term with a constitutionally protected funding floor.

#### **§8.1.a The Legislative Inspectorate**

The LI audits the Legislature for fiscal accuracy, constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing House district maps against §3.3 criteria and publishing germaneness analyses; determining referendum eligibility; certifying legislative mandate compliance; and publishing an annual compliance report to the NRS.

#### **§8.1.b The Executive Inspectorate**

The EI audits both executives and the Monetary Authority. Annual responsibilities include: military compliance assessment covering whether tier authorisations were followed, whether the §2.3 intelligence warrant requirement was maintained, and whether fund certifications were observed; publishing clemency background reports before any executive act; reviewing disclosure records for constitutional appointments; and auditing electoral finance within the period defined by statute following any election.

#### **§8.1.c The Judicial Inspectorate**

The JI audits the courts for judicial scope and independence. The JI certifies eligibility for the SC Candidate Registry under §8.4.e and confirms registry status for SC nominees, and conducts annual audits of the Elections Panel for electoral integrity compliance. The JI reviews accommodation compact compliance, Associated Community compact compliance under Article XX, and Article XIV indigenous

compact obligations. The JI's lottery-based selection makes it the appropriate body to administer all constitutional lottery draws and candidate certification functions throughout the Republic.

#### **§8.1.d IG Term Expiry and Incapacity**

An IG's constitutional authority terminates automatically at the moment their term expires — no further act or proceeding is required. Any official act taken after term expiry is constitutionally void. Where an unexpected vacancy arises mid-term — through death, resignation, removal, or certified incapacity — the most senior eligible member of the affected Inspectorate's candidate pool by continuous pool tenure who accepts designation serves as Acting Inspector General until a successor is confirmed under §8.3. The Acting IG holds full constitutional authority of the office. The Acting IG is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool. The JIC certifies the designation and both executives are notified immediately; notice does not condition the designation's effectiveness. Pool membership satisfies the eligibility requirement of §1.31. Where an IG is certified incapacitated by the other two Inspectorates jointly, the incapacitated IG's authority is suspended from the moment of joint certification and the acting mechanism under this provision activates immediately.

#### **§8.2 Selection and Independence**

Each Inspectorate is constituted through a process that structurally excludes the body being watched from selecting its watchers. The SC nominates the LI Inspector General, confirmed by Senate 2/3 supermajority — the Legislature is entirely excluded. The House nominates the EI Inspector General, confirmed by Senate 2/3 supermajority with JI vetting — the executives are excluded, and the 2/3 threshold prevents confirmation without cross-party Senate support. The JI Inspector General is selected by public lottery from a pool of former judges certified by the LI and EI — the JI has no role in constituting or certifying its own candidate pool.

#### **§8.3 Inspector General Selection**

The LI IG is nominated by the SC from a pool of qualified candidates maintained by the Elections Panel at the timeline defined by statute, sufficiently in advance to ensure confirmation is complete before the transition under §1.31; confirmed by national popular vote at the next federal electoral period following nomination, by simple majority of votes cast. The confirmed successor assumes full IG authority at the precise moment the incumbent's term concludes under §1.31. If the confirmation vote fails, the §8.1.d acting mechanism activates and the SC initiates a new nomination from the pool within 60 days. The EI IG is nominated by the House from a pool of qualified candidates maintained by the Elections Panel at the timeline defined by statute under §1.31; confirmed by national popular vote at the next federal electoral period following nomination, by simple majority of votes cast, with JI vetting of the nominee's disclosure record published before the vote. The same timing and failed-vote provisions apply. The JI IG is selected by public lottery under §8.13 from the JI Candidate Pool under §8.4.a maintained by the Elections Panel, conducted at the timeline defined by statute under §1.31; no separate confirmation required — the lottery result is the selection and the selected person assumes office at the precise moment the incumbent's term concludes. All IGs serve 10-year non-renewable terms. No two IG terms may begin within 18 months of each other, ensuring continuous institutional knowledge across offices. The Elections Panel administers all IG confirmation votes as part of the regular federal electoral period ballot.

#### **§8.4 JI Audit and Certification Mandate**

The JI holds two constitutional mandates: as auditor, it monitors the court system, certifies eligibility for the SC Candidate Registry maintained by the Elections Panel, and conducts compliance audits across compact obligations; as certification administrator, it certifies lottery draws and panel selections throughout the constitution. Both mandates are information-only. Annual audit responsibilities include: court operations for scope compliance and independence; the Elections Panel for electoral integrity; SC independence; inferior court compliance with jurisdictional limits; and compliance under Article XIV, Article XIX, and Article XX compacts. Any candidate removed from a ballot by JI certification may appeal to the Appellate Court within 14 days; the Court reviews only whether eligibility criteria were correctly applied and must rule within 21 days.

##### **§8.4.a Judicial IG Candidate Pool**

The Elections Panel of the Digital Infrastructure Commission maintains the JI Candidate Pool. Eligibility is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years. The JI holds no role in constituting or certifying its own candidate pool. The LI certifies each applicant's judicial service record for accuracy; the EI reviews financial disclosure; both certifications are published to the NRS as the pool entry record. The Elections Panel enters an applicant into the pool upon LI and EI certification; it may not exclude a certified applicant. The Joint Inspectorate Council conducts the lottery from the pool in a public session; the outgoing JI IG does not participate. The pool is publicly accessible at all times.

##### **§8.4.e Supreme Court Candidate Registry**

The Elections Panel of the Digital Infrastructure Commission maintains the standing SC Candidate Registry. Any citizen meeting the eligibility criteria — at least 15 years of legal practice or 10 years of judicial service, no current government position, no disqualifying financial interest — may apply directly to the Elections Panel. The JI certifies the eligibility of each applicant against the stated criteria and publishes its certification to the NRS as part of the registry entry. The EI reviews each applicant's financial disclosure for factual accuracy and publishes findings to the NRS alongside the JI certification. The Elections Panel includes an applicant in the registry upon JI certification; it may not exclude a JI-certified applicant. Registry inclusion does not expire unless the JI identifies a disqualifying change in eligibility status. The Registry is publicly accessible on the NRS at all times.

#### **§8.5 Inspector General Removal**

For-cause removal of any IG follows §8.15 Standard Track. The Judicial Track under §8.15 is additionally available where two of the three Inspectorates jointly certify for-cause grounds.

#### **§8.6 Inspectorate Operations**

The Inspectorates publish findings; they do not issue binding orders or legal determinations. Every finding, report, and discrepancy notice must be published to the NRS permanently and free of charge; no official may suppress, delay, classify, or alter an Inspectorate report before publication. Inspectorate reports are permanently exempt from classification. Where any Inspectorate publishes a Critical Failure

finding, the Legislature must publish a remediation plan with actions and timelines within the period defined by statute; failure to publish a remediation plan is a constitutional compliance breach certified by the LI. Any staff member may publish a minority report directly to the NRS if they believe a finding has been improperly omitted or suppressed — staff cannot be disciplined for doing so. All three Inspectorates jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Inspectorate mandates, the Inspectorates may conduct a joint investigation; neither IG may veto the other's contribution. All three Inspectorates have unrestricted access to records, personnel, facilities, and systems within their audit mandate; obstruction is a constitutional breach.

### **§8.7 Triggered Investigations**

The EI may investigate a constitutional officer for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer's control. Political disagreement with a constitutional requirement is not a defence. Dereliction findings are published to the NRS.

### **§8.8 EI Annual Military Assessment**

A dedicated section within the EI's annual report covers: whether military operations in the prior year were authorised through the correct tier; whether the §2.3 intelligence warrant requirement was maintained throughout all operations; whether PM fund certifications were obtained and observed; and whether all military orders were published to the NRS within the required period.

### **§8.9 Removal Grounds Review**

To initiate a standard track removal vote under §8.15, the charging party — a concurrent resolution of 1/3 of either chamber, or two of the three Inspectorates jointly — must file stated grounds with the SC. The SC determines within 14 days whether the stated grounds constitute at least one statutory removal category for the subject office as defined by the Legislature. If grounds are confirmed, duty suspension activates immediately and the Legislature may proceed to a removal vote. If grounds are not confirmed: the process closes and may not be reinitiated on the same grounds within six months. The SC reviews constitutional category only — it does not assess the factual merits or credibility of the underlying allegations. No per-proceeding panel is required; the SC performs this function directly. The Legislature defines the enumerated removal categories for each constitutionally confirmed office by statute; no removal vote may proceed without the SC's categorical confirmation under this section.

### **§8.10 Inspectorate Minimum Funding Guarantee**

The annual appropriation for each Inspectorate may not fall below the prior fiscal year's funding level without a 2/3 vote of both chambers simultaneously. The Monetary Authority certifies each Inspectorate's prior-year funding level annually and publishes the certified floor to the NRS before the Legislature begins its annual budget process.

### **§8.12 Joint Inspectorate Council**

The three Inspector Generals jointly constitute the JIC as the standing coordination body for matters crossing Inspectorate jurisdictions. The JIC formally houses all jointly certified constitutional functions — including lottery draws and selection

processes throughout the constitution. The chair of any joint session is the IG whose domain covers the primary subject matter; where all domains are equally engaged, the chair rotates annually. Where the IGs cannot reach consensus on a joint matter, each publishes their individual assessment and the disagreement is noted in the permanent NRS record. The JIC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted. The joint annual NRS audit is published to both chambers. For the DIC Administrator Pool specifically, the JIC exercises enhanced oversight given the Elections Panel's administrative interest in its own membership pool: the JIC conducts quarterly review of pool health and certification accuracy; any JIC member may challenge the exclusion of any applicant and the Elections Panel must respond in writing within 14 days; and each pool entry requires joint certification published by the JIC alongside the relevant Inspectorate certification. The JIC has no authority to override the individual mandate of any Inspectorate.

#### **§8.12.a Institutional Compromise Protocol**

Where two of the three Inspectorates jointly certify that the third is operating in demonstrable bad faith, they petition the SC directly for confirmation of the finding; the SC rules within 14 days. Upon filing the petition, the two petitioning Inspectorates jointly designate an Acting Inspector General designated as the longest-tenured member of the affected Inspectorate's candidate pool who accepts the designation; both executives are notified immediately. The Acting IG assumes all constitutional functions of the compromised Inspectorate from the moment of designation. If the SC does not confirm the finding, the Acting IG stands down and all functions return immediately to the original IG. If confirmed, the Acting IG serves until either the original IG is restored to full function or a new permanent IG is confirmed under §8.3 — whichever occurs first. The Acting IG is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool.

#### **§8.13 Constitutional Pool Framework**

The Elections Panel of the Digital Infrastructure Commission maintains all constitutional candidate registries and pools as the administrative keeper of record. The Elections Panel receives applications, stores records, provides public access via the NRS, and enters certified applicants into the relevant registry or pool. The Elections Panel may not exclude any applicant who has been certified as eligible by the appropriate Inspectorate. The appropriate Inspectorate reviews each applicant against the qualification requirements for that registry or pool and publishes a certification to the NRS. Where an office involves significant financial authority, the EI reviews financial disclosure concurrently. Pool records and certifications are public NRS records at all times. The Joint Inspectorate Council conducts the draw in a public session, certifies the result jointly, and publishes it to the NRS. Selection by deliberate nomination: the named officer nominates from certified pool members. Confirmation where required: the Senate must act within the period defined by the establishing provision; failure to confirm within that period is a constitutional compliance breach certified by the LI. The JI monitors all constitutional pools annually and publishes a status report; where a pool falls below its constitutional minimum, the relevant nominating bodies must respond within 30 days.

## Article IX — The National Record System

### **§8.14 Registry Integrity Standards**

These standards apply to all registries and candidate pools maintained under constitutional mandate. Eligibility criteria are strictly objective — years of practice or service, office status, and financial interests as defined by this Constitution or by statute. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void. Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days. An excluded or removed applicant may petition the SC within 30 days of NRS publication; the SC reviews only whether the stated grounds correspond to an established eligibility criterion — it does not review the factual merits of the determination. The JIC annual audit must evaluate each registry for pool depth, distribution, and patterns in exclusion decisions.

### **§9.1 National Record System**

The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost. Every constitutional act, order, finding, certification, designation, declaration, and determination made under authority of this Constitution is published to the NRS as a permanent record. No provision of this Constitution need state this obligation individually; it applies universally by operation of this section. Where this Constitution specifies a publication timeline, that timeline governs; in all other cases, publication occurs at or before the effective moment of the act. Every government act required to be published must appear on the NRS before it takes legal effect. Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original. The NRS must remain fully functional in the event of localized technical failure — no single point of failure is constitutionally acceptable. The Legislature defines technical standards by statute. The NRS includes a permanent historical archive of all prior legislative acts, executive orders, judicial decisions, and government documents dating to the Republic's founding. Records published to the NRS by any jurisdiction within the Republic are recognized as authentic by all other jurisdictions without re-certification. Inspectorate reports are permanently exempt from classification. Citizens may submit corrections or context to any NRS record through a public mechanism maintained by the LI; submissions are published alongside the original after accuracy review. The NRS is the record of government, not a condition of it. Government acts take legal effect from the moment of issuance regardless of NRS status; the publication obligation applies from the moment the NRS is restored. The JI maintains a continuously operating parallel authentication system, physically and logistically independent of the NRS, capable of authenticating and preserving all constitutional acts without NRS connectivity. This system operates in parallel at all times — not merely as a contingency — and records all authenticated acts with full constitutional effect from the moment of their issuance. Upon NRS restoration, all parallel system records migrate to the NRS as permanent records with their original issuance timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record of the Republic; the Legislature must by statute establish permanent restoration obligations and timelines within 90 days of that threshold. The Legislature defines the technical specifications, security standards, and operational parameters of the

parallel system by statute; the constitutional obligation to maintain it is absolute and its funding floor follows the NRS funding floor in this section. Funding for the NRS may not be reduced below the prior year's level without a 2/3 vote of both chambers. Classification used to conceal a constitutional violation or illegal order is itself a constitutional offense.

#### **§9.4 NRS and Electoral Integrity**

All electoral records — voter registration, ballot counts, audit trails, certification documents — must be published to the NRS within the timeframes specified by the Elections Panel's constitutional mandate under Article XVI. No classification exception applies to electoral records.

#### **§9.5 Classification Criteria**

Government records may be classified only on grounds the Legislature defines by statute. Classification to conceal a constitutional violation, policy disagreement, or political embarrassment is prohibited and void. The classifying authority must state the statutory ground at the time of classification.

##### **§9.5.a Duration Framework**

No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension may be granted where the responsible executive publishes a justification to the EI; the EI certifies whether the justification meets the statutory standard and publishes its finding to the NRS. No material may remain classified beyond 30 years under any circumstances. On expiry, automatic declassification and NRS publication applies within 30 days. All other classification periods, procedures, and review mechanisms are defined by statute within this ceiling.

## **Article X — Economic Provisions**

#### **§10.1 The Social State and Monetary Authority**

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfils through the following three systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework for each by statute. The Legislature must establish by statute an independent Monetary Authority responsible for monetary policy and fiscal integrity certification; the EI audits its operations annually and publishes findings to the NRS.

#### **§10.2 Fiscal Accountability**

The Legislature must pass a balanced budget or publish a structural deficit justification reviewed by the MA for fiscal accuracy. Structural deficits above the threshold defined by the MA require a published plan for return to balance. Where discretionary government spending is suspended due to budget failure, the pay of all members of both chambers is withheld from the same date on which government employee pay is withheld and released only upon budget enactment. The Legislature must fund the National Endowment by appropriation in years of fiscal surplus; failure to establish or adequately fund the Endowment is a compliance breach certified by the LI.

**§10.3 Public Campaign Financing**

The Legislature must establish a public campaign financing system within the period defined by statute following the first Legislature convening; failure to do so is a constitutional compliance breach certified by the LI. The system must provide all registered candidates with equal access to public funds with no incumbent advantage in the allocation formula. Private contributions are capped at the de minimis threshold established by statute. Administered by the Elections Panel — not by either executive or the Legislature.

**§10.5 Ethics and Conflict of Interest**

All constitutional officers must disclose all financial interests, holdings, income sources, and liabilities to the EI within the period defined by statute of taking office and annually thereafter; disclosure records are published to the NRS. Any officer with a direct financial interest in a decision within their authority must recuse themselves; recusal is self-executing. Constitutional officers may not, for a period defined by statute after leaving office — which may not be less than two years — engage in any activity that monetizes or draws on non-public information, relationships, or access accumulated during service; the EI determines whether a post-service engagement falls within this restriction and the officer bears the burden of demonstrating it does not. Officers may not accept gifts above a de minimis threshold; all gifts above the threshold must be disclosed to the EI and deposited with the relevant treasury. All records created in the exercise of official functions are public records and may not be retained, destroyed, or removed by departing officers. The EI investigates alleged violations and publishes findings to the NRS; where findings warrant further action, the EI refers to the appropriate authority.

**§10.6 National Endowment**

The National Endowment is a constitutionally established reserve fund that backstops the Republic's social state obligations under §10.1 during periods of Severe Revenue Contraction, as certified by the independent Monetary Authority established under §10.1. It operates independently of the annual budget process. The Endowment is governed by a board of five trustees selected by public lottery from the National Endowment Trustee Pool. Each executive nominates qualified persons to the pool annually; pool entry and certification follow §8.13; the JIC conducts the trustee lottery under §8.13. Disbursements are activated on Monetary Authority certification of Severe Revenue Contraction and continue until the Monetary Authority certifies the contraction has ended. Trustees serve staggered 6-year non-renewable terms and may be removed only for cause. The board's sole mandate is to preserve and grow the Endowment for social state backstop purposes; it may not be directed to any other goal. All board decisions and performance reports are published to the NRS; the EI audits the board annually.

**§10.7 Compensation of Public Officials**

No government official may set their own compensation or the compensation of their direct supervisors. All official compensation is set by House statute and is a public record on the NRS. Official benefits and accommodations beyond compensation reflect the functional requirements of the office, not the status of the officeholder. No benefit may exceed what the function genuinely requires. Departures from ordinary professional standards require a demonstrable operational need certified by the EI and are limited to the minimum extent that need requires.

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**Article XI — Direct Democracy**

### **§11.1 Optional Referendum**

Citizens may initiate a national referendum to repeal enacted legislation by petition of 5% of eligible voters within 90 days of enactment. Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible — the LI publishes an eligibility determination within 14 days of petition submission, challengeable in the Appellate Court within 7 days. If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to the Legislature-defined turnout threshold, repeals the law immediately upon certification. A failed referendum cannot be re-initiated on the same grounds for 5 years; the Legislature may re-enact a repealed law, which is again subject to referendum.

### **§11.2 Citizen Legislative Initiative**

Citizens may propose legislation directly to the Legislature by petition of 10% of eligible voters. The Legislature must vote on the proposal within 90 days; if it fails or is not voted on, the proposal proceeds to a national referendum at the §15.1 Path C thresholds. Citizen-initiated legislation that bypasses the Legislature requires the higher democratic mandate of the citizen-led amendment threshold.

### **§11.3 Local Government**

Local governments — cities, counties, municipalities, and other subdivisions — receive constitutional recognition as primary points of contact between citizens and government. They are entitled to reasonable fiscal capacity to carry out their constitutional functions. States may not starve local governments to achieve de facto state centralization.

### **§11.4 Electoral Supermajority Threshold**

60% of votes cast is the constitutional threshold for all direct electoral supermajority determinations. This threshold applies wherever this Constitution requires a supermajority outcome in a citizen vote rather than a legislative vote: the presidential first-round threshold at which the State plurality requirement is waived (§7.2); public confirmation of a Supreme Court justice under the Senate bypass mechanism (§4.4.a); and public election removal of a constitutional officer under the Judicial Track (§8.15). The Legislature may not set a higher or lower threshold for any direct electoral supermajority determination without a constitutional amendment. This provision does not govern the optional referendum or citizen initiative under §11.1–§11.2, which require only a simple majority of votes cast; it governs determinations that require constitutional supermajority democratic consent.

## **Article XII — Military Authorization and Accountability**

### **§12.1 Authorized Purposes for Military Force**

Military force serves two authorized purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to genocide. Three purposes are explicitly prohibited regardless of legislative authorization: nation-building, resource extraction, and ideological

imposition. Legislative authorization must state which authorized purpose it serves; authorization that cannot be linked to an authorized purpose is constitutionally void.

### **§12.2 Defense Authorization and Allocation**

Military expenditure is authorized through PM certification concurrent with legislative authorization. No military operation may be funded without PM certification; the PM may certify, condition, or decline certification on any operation. Expenditure in categories not covered by the certification requires supplementary PM certification. When legislative authorization expires or is not renewed, all military expenditure ceases; ongoing contracts may continue to wind down for the period the Legislature defines by statute; no new commitments may be entered after authorization expires. The EI audits all military expenditure during active operations and publishes findings to the NRS. Within the period the Legislature defines by statute following the conclusion of any military operation, the EI publishes a comprehensive expenditure accountability report. Where the PM declines certification for ongoing military operations that have been legislatively authorized, previously certified operational expenditure continues at maintenance-only levels for the period the Legislature defines by statute — covering only operations explicitly within the prior authorization, with no escalations, expansions, or new commitments permitted; the President must publish notice of the certification refusal to the NRS within 24 hours with stated grounds; both chambers must be notified simultaneously; if the Legislature does not act within the maintenance period, all expenditure ceases. A PM who declines certification bears the same constitutional attribution for the consequences of that decision as a President who orders an operation.

### **§12.3 Military Intelligence Operations**

Intelligence capabilities used in support of authorized military operations are subject to the §2.3 warrant requirement at all times — no military operation authorizes domestic intelligence collection against citizens without independent judicial authorisation. Intelligence activities must be published to the NRS in classified summary form within the period defined by statute following military operations being fully concluded.

### **§12.4 Military Accountability**

Within 90 days of legislative military authorization being renewed for a second time, the Senate must approve a Transition and Reconstruction Plan specifying the Republic's post-conflict obligations: status of alliance obligations, civilian reconstruction support, transitional justice support, and withdrawal timeline. The Plan is published to the NRS and is binding on the executive. If the Senate fails to approve a Plan within the required period, the LI certifies a constitutional compliance breach; the PM may provisionally authorize continued operations for up to 60 days total in two 30-day extensions, each requiring PM notification to the Senate Armed Services Committee and certification that operations remain within the Declaration's scope. Once the two extensions are exhausted, no further authorization renewals are permitted until the Senate approves a Plan.

### **§12.5 Treaty-Based Military Authorization**

Where an existing treaty requires emergency military action, the President may act immediately and must notify both chambers and the PM within 12 hours, citing the specific treaty obligation triggered. The legislature must then authorize continuation within the period defined by statute; absent authorization, operations cease. Treaties cannot substitute for legislative authorization of sustained engagement — each

continued operation requires authorization regardless of what the treaty requires. PM certification of expenditure applies from the moment of action under §12.2.

## Article XIII — Territorial Structure and Statehood

### §13.1 Territorial Compact

A Territory operates under a Territorial Compact, has federal protections under Article I, accesses social state systems under §10.1, and may begin the Statehood pathway under §13.2. Territories hold House seats proportional to their population and participate as full voting members. Territories do not hold Senate seats; Senate representation is reserved for States.

### §13.2 The Statehood Audit

The pathway from Territory to State is automatic upon passing the Statehood Audit and Provisional Membership Period — no political vote is required once the audit is passed. The audit has two components: the LI audits fiscal integrity; the JI audits legal compliance with every Article I right. Both must pass. A Territory that fails receives specific published findings and may resubmit after addressing the failures. The Legislature defines audit methodology and resubmission timelines by statute. Upon passing, the Territory enters a Provisional Membership Period of between one and three years as the Legislature defines; clean completion results in automatic Statehood. Every State must maintain three ongoing conditions: functioning electoral processes, basic rule of law and judicial function, and Article I rights compliance; annual audit verifies continued compliance and a failing State enters a remediation process, not automatic devolution. Where active conflict prevents completion of an annual audit in a significant portion of a State's territory, the LI may grant provisional audit status for that cycle on joint Inspectorate certification; provisional status is unavailable where the State materially contributed to the conflict conditions. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria.

### §13.3 Mandatory Devolution

A State enters Mandatory Devolution if it fails three consecutive annual Statehood Audits, certified by the LI and confirmed by both the EI and JI. After each failing audit, the LI publishes an Early Warning specifying compliance requirements; the State must publish a Remediation Plan within 60 days. After three consecutive failures, citizens vote on whether to accept a two-year federal remediation commission or proceed to devolution; either path is published to the NRS. A devolved State returns to Territory status. Sitting senators complete their current elected terms — Senate seats are not vacated — but no new Senate elections may be held until Statehood is restored; existing House members complete their current terms; Article I rights and social state protections continue without interruption. Restoration to Statehood is automatic upon passing the Statehood Audit and completing the Provisional Membership Period. Within 30 days of devolution taking effect, the affected State may petition the SC on the sole ground that the audit findings are factually insufficient to establish three consecutive failures; the Court reviews only the factual basis and must rule within 14 days.

### §13.4 Voluntary Devolution and Merger

A State may voluntarily restructure its relationship with the Republic. The process requires a State referendum achieving 60% approval of eligible voters on the specific

proposed restructuring; and Senate approval of a negotiated restructuring agreement by 2/3 majority. The agreement specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, and continuing obligations; it is published to the NRS and legally binding. Social state protections and Article I rights continue through the transition. A Territory resulting from voluntary devolution enters the Statehood re-qualification pathway immediately. A Territory or defined portion of a Territory may merge with a geographically contiguous existing State, requiring a 60% referendum with at least 50% participation, approval by the existing State through its own constitutional process, a joint LI-JI Statehood Audit confirming the existing State's integrity is maintained, and Senate ratification by simple majority.

### **§13.5 Re-Qualification Pathway**

A Territory resulting from mandatory or voluntary devolution enters the Statehood re-qualification pathway under §13.2 immediately upon the effective date of devolution. No additional political vote is required to begin the pathway.

### **§13.6 Voluntary Incorporation**

A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The process requires a petition resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving simple majority on at least 50% participation; the JI's published assessment of whether the entity systematically violates any non-derogable right listed in §1.26.b; and acceptance by the Legislature by 2/3 of both chambers. An accepted petition produces an incorporation agreement specifying a transition period not exceeding 48 months. The Republic may not pressure any entity to initiate this process. An indigenous nation recognised under Article XIV must make a status election under §14.7 before this provision applies.

### **§13.7 State Immutability and Territorial Integrity**

A State's constitutional boundaries are fixed. No constitutional mechanism permits a State to divide directly into two or more States — the separating portion must first become a Territory before seeking independent Statehood. The Republic's territorial extent may only be reduced by the consent of the affected population through a Path B or Path C constitutional amendment — Path A alone is insufficient. A State may not secede by ordinary statute or State referendum alone. No executive action may alter the Republic's territorial extent.

## **Article XIV — Indigenous Sovereignty**

### **§14.1 Acknowledgment of Prior Sovereignty**

The foundational provision recognizing that Indigenous Nations within the Republic's territory hold a distinct constitutional relationship based on prior sovereignty. The compact relationship is bilateral: the Republic acknowledges Indigenous prior sovereignty; Indigenous Nations acknowledge the Republic's constitutional framework.

### **§14.2 Compact Formation**

An Indigenous Nation may enter a compact with the Republic by submitting a compact proposal to the Senate. The Senate must within 90 days either begin compact negotiations or publish written reasons for declining; a declined proposal

may be resubmitted after 5 years or after a material change in circumstances. Compact terms are negotiated between the Nation and the PM's domestic affairs office, with JI oversight. Compacts take effect upon 2/3 Senate ratification and Indigenous Nation ratification by their own constitutional process.

#### **§14.3 Rights and Governance in Compact Territories**

Article I rights apply in full within all compact territories; no compact provision may limit or qualify any Article I right; where compact governance conflicts with an Article I right, Article I prevails. Indigenous Nations with compacts hold governance, judicial, and resource sovereignty within their territories subject to the specific terms of their compact. Indigenous Nations may establish their own courts with jurisdiction over matters within compact scope, operating in parallel with federal courts; citizens may bring Article I claims directly to federal courts regardless of compact scope. Compact territories include explicit land and resource sovereignty provisions; the Republic may not alter compact land provisions without Nation consent; resource extraction within compact territories requires both Republic and Nation approval. The Republic recognizes Indigenous governance structures as legitimate political institutions within compact scope; federal agencies must coordinate with compact governance bodies. Compacts must include provisions for preservation and transmission of Indigenous languages and cultural practices; the Republic provides federal education funding that supports Indigenous-language instruction.

#### **§14.4 Compact Administration and Continuity**

Compacts are living agreements administered through joint mechanisms. Disputes are resolved through a Joint Compact Review Council with equal representation of the Nation and the Republic. The Republic is represented on the Council by the PM's designated Compact Officer for domestic and governance matters; the President's designated representative participates for any matter within the presidential domain under §2.1. Council decisions are binding on both parties within the scope of the compact; neither party may unilaterally declare a compact dispute resolved. Constitutional questions are appealed to the SC, which must rule within 90 days of petition. Compacts are reviewed on a schedule defined in the compact terms, minimum every 20 years; either party may request a review outside the schedule. The review may result in compact amendment by mutual agreement — neither party can impose amendments. A compact may be terminated by mutual agreement only; neither party may unilaterally terminate; only the Nation may initiate termination, and the Republic must negotiate exit terms within 2 years; if no agreement is reached the compact continues and the dispute is referred to the SC.

#### **§14.5 Federal Obligations and New Compact Petitions**

The Republic holds affirmative obligations to compact territories: federal education funding, healthcare access, infrastructure investment, and emergency response. These obligations are enforceable by the Nation through the compact dispute resolution process. Any resident of compact territory who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC, bypassing all lower courts and the compact dispute resolution process; the SC must respond within 7 days. Indigenous communities that do not currently hold a compact may petition the Senate for compact recognition; the Senate must consider the petition within 90 days and either begin negotiations or publish written reasons for declining. Indigenous Nation membership and Republic citizenship are compatible and independent statuses; dual status is the constitutional default.

### **§14.6 Treaty Supremacy and Continuity**

All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic. Treaty rights cannot be diminished by legislation — they must be honored, renegotiated with consent, or formally superseded by mutual agreement through the compact negotiation process under §14.2 and §14.4.

### **§14.7 Indigenous Nation Status Elections**

An indigenous nation with an established compact under Article XIV holds the constitutional right to initiate a status transition through its own democratic or traditional governance process. Three status options are available: (a) Compact Status — continued Article XIV compact relationship (default; no election required to remain); (b) Territorial Integration — election to pursue territorial incorporation through §13.6, entering as a Territory with the standard §13.2 Statehood pathway available; (c) Full Sovereign Independence — the nation exists outside the Republic's constitutional framework as a fully independent sovereign nation, with the Republic obligated to negotiate a treaty within 24 months governing borders, trade, citizenship, and infrastructure — negotiations are conducted jointly by both executives through the JEC under §2.14, with the President holding primary authority on border and defence terms under §2.1 and the PM holding primary authority on domestic implementation terms under §2.5; as an independent sovereign the Nation may subsequently seek an Associated Community compact with the Republic under Article XX. The Republic may not prefer, discourage, or offer inducements toward any option. The Republic must provide factual information about each status upon request.

#### **§14.7.a Status Election Process**

A status election under §14.7 requires: (1) a decision by the nation's own governance process, meeting the standards the nation itself defines for major governance decisions; and (2) publication of the election to the NRS within 30 days of the governance decision. A status election is irrevocable — a Nation that elects Territorial Integration or Full Sovereign Independence may not subsequently return to Article XIV compact status. Once a Nation has transitioned to Territory or State status, any further changes follow the standard constitutional processes applicable to that status under Articles XIII and XIX — including mandatory devolution under §13.3 if three consecutive Statehood Audits are failed. A Territory or State that formerly held Article XIV compact status has no special pathway back to compact status; the irrevocability of the status election is unconditional. Once a Nation has elected Full Sovereign Independence, any subsequent relationship with the Republic — including Associated Community status under Article XX — is pursued as an independent sovereign; Associated Community status requires full independence first and cannot be elected directly from compact status. At ratification, the Republic must formally notify all recognized indigenous compact nations of their rights under §14.7.

## **Article XV — Constitutional Amendments**

### **§15.1 Amendment Paths**

This Constitution may be amended through the parliamentary path or through citizen initiative. No executive signature is required; no executive veto applies. Every member's vote on any amendment is published to the NRS. A parliamentary amendment requires a 2/3 supermajority of the full seated membership of both

chambers proposes the amendment. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute) or Popular Ratification (a national popular referendum achieving 2/3 affirmative support with at least 55% citizen participation within 180 days). A proposed amendment may be withdrawn at any point before ratification is certified. Two amendments may be simultaneously in ratification; where they conflict, the one ratified later in time prevails.

#### **§15.2 No Executive Veto; Amendment Takes Effect**

Neither the President nor the PM has any role in the constitutional amendment process. No signature required. No veto available. An amendment takes effect immediately upon LI certification (Path A) or Elections Panel certification (Path B) and NRS publication — no implementation delay, no executive discretion over timing.

#### **§15.5 Amendment Consistency and Supremacy**

An amendment that is logically inconsistent with an existing provision must either explicitly repeal the inconsistent provision or the inconsistency is treated as void. The LI publishes a consistency analysis of any proposed amendment within 30 days of its official proposal — advisory, but a permanent public record of what the amendment changes. If a ratified amendment's consistency with existing provisions is disputed, the SC resolves the dispute on expedited review; the SC may not refuse to apply an amendment that has met its procedural thresholds. Amendments take prospective effect from the date of ratification — they do not retroactively alter the constitutionality of acts that were constitutional when performed. Two amendments may be simultaneously in the ratification process; if both pass, both are law; where they conflict, the one ratified later prevails; where margins and timing are equal, the LI determines precedence from NRS records. A proposed amendment may be withdrawn at any point before ratification is certified.

#### **§15.6 Supremacy of This Constitution**

This Constitution is the supreme law of the Federated Republic. All legislative acts, executive orders, treaties, administrative decisions, and government actions must be consistent with this Constitution. Any provision inconsistent with this Constitution is void to the extent of the inconsistency.

## **Article XVI — The Electoral Commission**

#### **§16.1 Digital Infrastructure Commission**

The Digital Infrastructure Commission comprises two constitutionally independent panels — the NRS Panel and the Elections Panel — each responsible for the day-to-day operation of its respective system and for maintaining all constitutional candidate registries and pools within its mandate. The NRS Panel operates the National Record System. The Elections Panel operates the National Voting System and administers all federal elections, referenda, and confirmation votes. Each panel is operationally independent; neither panel may direct the other. The Legislature defines by statute the technical standards, interface requirements, budget, and operational parameters for each system; the panels implement within those statutory parameters. The Chair of each panel is its most senior administrator by continuous service within that panel; where two or more administrators have equal continuous service, the Chair is determined by lot conducted by the JIC. Each panel is independent of both executives and the Legislature in the exercise of its operational functions.

**§16.1.a DIC Administrator Appointment and Terms**

The PM nominates DIC administrators from the DIC Administrator Pool maintained by the Elections Panel. The Senate confirms by 2/3 supermajority. Administrators serve a primary 8-year non-renewable term. The PM may grant a single 2-year extension to any administrator before their term expires where a genuine ongoing operational matter requires continuity — the extension and stated reasons must be published to the NRS; the JIC assesses the stated justification and publishes its assessment within 30 days. Extensions are not the constitutional norm; no administrator may serve more than 10 years in total. Within each panel, terms are staggered so that no more than one seat expires in any calendar year, ensuring a continuous seniority hierarchy for the Chair function. At establishment, initial terms within each panel are assigned by lot across three offset starting points — one full 8-year term, one initial term of approximately 5 years, and one initial term of approximately 3 years — creating an immediate seniority hierarchy within each panel from day one. NRS Panel administrators must hold at least 12 years of professional expertise in cryptography, distributed systems, or public records management. Elections Panel administrators must hold at least 12 years of professional expertise in elections administration or electoral technology. All administrators must hold no current or recent partisan affiliation.

**§16.1.c Removal and Accountability**

For-cause removal of any DIC administrator follows §8.15 Standard Track. The EI oversees each panel for executive accountability purposes. The JIC audits NRS operation and integrity compliance annually under §8.12; the JI audits Elections Panel operations and electoral integrity annually.

**§16.3 NVS Properties and Voting Rights**

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter without revealing identity to any other party), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). No information generated by the NVS — including voter participation records — may be shared with any government body or foreign entity for any purpose other than administering the relevant election. Every citizen holds the right to vote in federal elections. The Elections Panel issues and manages the Citizen Voting Credential, storing only cryptographic identifiers — not names or biometric data. States may offer early voting, mail-in ballots, and alternative participation methods provided all methods connect to the NVS and meet its constitutional standards. No State may reduce NVS access, functionality, or availability within its territory. Before each federal election window, the Elections Panel delivers to every eligible citizen the list of federal races on their ballot, NVS access procedures, and the certification timeline through at least two distinct channels.

**§16.5 DIC Accountability and Emergency Authority**

Where a panel administrator seat becomes vacant mid-term, the PM nominates a replacement within 60 days and the Senate confirms within 90 days of the vacancy opening; failure to confirm within that period is a constitutional compliance breach. The replacement serves the remainder of the vacated term only. The Legislature must establish by statute a procedure for each panel to adopt temporary technical measures in response to imminent security threats or system failures within its

domain; emergency measures may not change electoral rules, timelines, or NRS record permanence; they expire within 72 hours unless the full panel ratifies them by majority vote. The Legislature must by statute establish the transition from any predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

## Article XVII — Federal Property and National Trust

### §17.1 The Use Doctrine

Federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights — operational control over a designated footprint for the duration of the stated function. Use rights do not constitute ownership, do not transfer sovereignty from the host State, and do not survive the termination of the function that justified them. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. There are no unregistered federal land claims.

### §17.2 Seat of Government

The Republic holds no territorial sovereignty at its Seat of Government. The Seat is hosted by a State or Territory selected through a competitive bid process. The PM publishes a Requirements Specification to the NRS defining minimum functional, security, physical, and operational requirements; the Legislature establishes specific standards by statute. Any State or Territory may submit a bid; the House selects one by ordinary statute. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint; the host State or Territory retains full sovereignty outside that footprint. Federal control within the footprint is exclusive — the host may not tax federal operations or apply its own law to federal functions within the footprint. Residents of the federal footprint retain full Article I rights. The federal government must issue a new call for bids every twenty years; if no bids are submitted, the existing arrangement continues. When the Seat moves to a new host, a two-year transition window begins; prior improvements revert to the departing host with the land unless a retention agreement is reached within the statutory window.

### §17.3 Operational Use Rights

When a federal function ends, the Operational Use Right terminates automatically; the federal government must publish notice of termination to the NRS within the period defined by statute. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

### §17.4 The National Trust

The National Trust holds all federal land not conveyed by statute to States, indigenous compact territories, or private parties. Land disposal requires statute — the executive cannot convey or encumber public land unilaterally. National Trust designation requires a 2/3 vote of both chambers with host State consent; removal from Trust designation requires the same threshold plus SC review within 60 days confirming compliance with any applicable international obligations. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal

process begins. Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility; the EI monitors compliance annually cross-referenced with §1.23. States and indigenous nations may enter co-management agreements with the Domestic Affairs Council for National Trust lands within their borders or ancestral territories without transferring Trust ownership. The National Trust Administrator is a statutory independent officer whose independence is protected by statute; the enabling statute may not reduce the stewardship obligations or diminish the EI's annual monitoring authority.

#### **§17.5 Federal Property in Territories**

Federal operational use rights in Territories follow the same framework as in States under §17.3 and §17.4. Host State legislative consent is not required because Territories have no State legislature; the Territory's representative body and the LI are consulted before any use right is registered.

## **Article XVIII — Electoral Finance and Campaign Conduct**

#### **§18.1 Electoral Finance**

Electoral finance is regulated to prevent structural distortion of democratic accountability through concentrated financial influence. All contributions above the de minimis threshold must be publicly disclosed to the Elections Panel and published to the NRS — anonymity in electoral finance is prohibited. Individual contributions to electoral campaigns are capped at a level defined by statute. Corporate, organizational, and foreign contributions are prohibited; the prohibition on foreign contributions applies to any person or entity that is not a Republic citizen or resident. Independent expenditures made in support of a campaign are subject to the same disclosure requirements as direct contributions; coordinated expenditures are treated as direct contributions. Financial contributions to electoral campaigns are not constitutionally protected speech under §1.5 and are not protected as associational activity — the regulation of electoral finance is explicitly reserved from both speech and associational protection.

#### **§18.2 Campaign Conduct**

Candidates for constitutional office campaign in compliance with published Elections Panel conduct standards prohibition on demonstrably false statements of material fact about a candidate's recorded votes; prohibition on impersonating other candidates; prohibition on vote suppression activities; and prohibition on interference with the electoral administration process. Characterization, emphasis, and contextual framing of voting records are protected expression. Campaign communications must clearly identify their sponsor. Fabricated or deceptively edited communications about other candidates are a constitutional violation. Any attempt by a foreign government, foreign national, or foreign-controlled entity to influence a Republic election is a constitutional violation; candidates who knowingly accept foreign assistance are disqualified from that election cycle. Constitutional officeholders standing for election in a different race must observe strict separation between official functions and campaign activity; official resources may not be used for campaign purposes.

#### **§18.3 Public Campaign Financing**

The Republic maintains a publicly funded campaign financing system as an alternative to private fundraising. The system provides all registered candidates with equal baseline funding; no allocation may advantage incumbents or established parties. Candidates who accept public financing are subject to spending limits defined by statute. The Legislature may create a matching funds component amplifying small donations; matching thresholds, caps, and ratios must apply equally to all participating candidates. The Elections Panel administers disbursement and audits all campaign finance records within the period defined by statute following any election. Candidates who receive impermissible contributions must report them within 10 days and either return them or have them treated as undisclosed.

## Article XIX — Transition and Ratification

### §19.1 Activation Threshold and Ratification

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §16.3; and (2) a national ratification vote achieving 60% affirmative support with at least 50% participation. Ratification creates binding constitutional obligations on all governmental actors from Day Zero. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt: joint Phase 0/1 certification, consolidated debt assumption, and proportional obligation assumption per treaty terms. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status.

### §19.2 Day Zero and Transition

Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets transfer to the NRS; and the 24-month Transition Window begins. The Republic exists the moment the Elections Panel certifies the threshold. The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Inspectorate panel formed; Phase 1 — Emergency Stabilization (Days 1-90), during which existing officials serve as caretakers and social state continuity is the priority; Phase 2 — Institutional Construction (Days 91-270), during which Statehood Audits are conducted, Inspectorates formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271-450), encompassing the first the federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

### §19.4 Caretaker Status

All existing government officials serve as caretakers during the Transition Window — restricted to maintaining existing services only; no new permanent legislation. Transition is supervised by a joint Inspectorate panel of one representative per Inspectorate appointed by their respective IGs; the panel dissolves automatically at the Transition Window's conclusion.

### §19.5 Pre-Constitutional Classified Documents

The Legislature must establish a Classification Review Commission within 90 days of Phase 4 activation. The Commission applies constitutional classification criteria to predecessor classified material: legitimately classified material enters the standard classification framework from Day Zero; improperly classified material is immediately declassified and published to the NRS. Any person may challenge a Commission determination before the SC.

#### **§19.6 Pre-Existing Obligations**

The Republic assumes the public debt obligations of its predecessor government as a constitutional matter — it does not inherit a clean slate. Active military operations of the prior government continue under existing authorization until the §2.2 tier framework can apply; the President, once inaugurated, must certify each active operation under the appropriate tier within 14 days or begin orderly cessation; operations not certified within 60 days cease unless the Legislature grants a one-time extension. Social insurance programs — retirement pensions, disability benefits, health coverage — continue uninterrupted during the Transition Window. All benefit obligations to persons who served in military or national service under the prior government are inherited and honored; the Legislature must pass a Veterans and National Service Benefits Act within the first budget cycle following Phase 4. The Republic is the legal continuation of the prior government as a matter of international law; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. The immediate nullification of laws conflicting with the Individual Sovereignty Floor creates constitutional disputes; the Legislature must establish an interim Constitutional Claims Court within Phase 2, with jurisdiction over all Article I claims arising from Day Zero nullification.

#### **§19.7 Transition Territories**

Territories or subdivisions meeting the Statehood Audit Competency Baseline by Phase 2 end may petition to enter as State or Territory. Those failing the Baseline enter as Territory and may begin the Statehood Audit immediately. Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Baseline. Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities. Where a state fails the Phase 2 Statehood Audit, it enters as a Territory; its population retains all Article I rights and participates in first House elections proportionally. All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation without undergoing Phase 2 Statehood Audits; any capital district or special administrative region is assigned Territory status and follows the §13.2 path.

#### **§19.8 Transition Candidate Registers**

The joint Inspectorate panel assembles the initial Candidate Registers for all constitutionally established positions before Phase 3 elections can occur. The panel performs the register-assembly and vetting function that permanent Inspectorates will assume after Phase 4; registers assembled by the panel carry full constitutional validity and the Legislature ratifies and continues them through the first budget cycle after Phase 4. The panel performs interim MA fiscal certification functions from Phase 4 activation until the first MA Director takes office; the first PM must nominate MA board members within 90 days of Phase 4 activation.

**§19.9 Transitional Accountability Mechanism**

Where a ratifying polity's predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited, non-criminal, and consistent with Article I in all its operations. The establishing statute defines the scope, procedures, and duration; no amendment may expand the scope without the same 2/3 majority; the NRS record is permanent. No new Mechanism may be established within ten years of the sunset of a prior one.

**§19.10 Required Statutory Agency Establishment**

Where this Constitution assigns a specific function to a statutory independent agency under §3.9, the Legislature shall establish that agency within the following timeframes from Phase 4 activation: the CLT Administrator under §5.1.c, within 180 days; the Census Bureau under §3.2, within 18 months. Where the Legislature fails to meet a deadline, §3.9 applies: the function is administered on an interim basis by the responsible Inspectorate until the agency is established. The LI publishes a compliance notice when any establishment deadline is missed and again when the agency becomes operational. The Legislature may not permanently delegate a constitutionally required statutory function to an Inspectorate in lieu of establishing the required agency.

## Article XX — Associated Communities

**§20.1 Associated Community Status**

Exclusively for sovereign entities — not a form of State or Territory status, not transitional, not incorporation. Available to nations that have completed the independence process under §13.7, to independent nations outside the Republic seeking a defined relationship, or to nations recognised as pre-existing sovereigns under Article XIV. Indigenous nations holding rights under Article XIV may not substitute an Article XX compact for their Article XIV compact relationship without first completing a status election under §14.7.a.

**§20.2 Compact Terms and Equal Sovereignty**

Equal parties; neither constitutionally superior. Observing delegates attend House and Senate proceedings relevant to the compact — speaking rights, no vote, no quorum or threshold effect. The Republic may not impose its constitutional governance architecture on an Associated Community as a condition of the compact relationship. Minimum democratic legitimacy requirements applicable to States do not apply to Associated Communities.

**§20.3 Compact Conditions and Compliance**

No compact may be entered or ratified with any entity whose governance practices include, authorise, or systematically permit violations of any of the non-derogable rights established in §1.26.b, committed against any person within its jurisdiction. The Judicial Inspectorate certifies compliance with this condition before parliamentary ratification of any compact; a compact negotiated with a non-compliant entity is void regardless of parliamentary ratification. The JI conducts annual compliance reviews and publishes findings to the NRS. Where the JI finds systematic violations of the non-derogable rights under §1.26.b, the compact is suspended pending Supreme Court review. The Court may terminate the compact on confirmed

systematic violations without remediation within a period the Legislature defines by statute. Economic value of the compact relationship is not a factor in JI certification or Supreme Court review. Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address those relationships and may not require the Associated Community to eliminate or diminish pre-existing indigenous governance arrangements within its territory. The Legislature may not schedule a compact ratification vote until the JI publishes its certification finding. During suspension, both parties' obligations under the compact continue in effect pending the SC's determination; the Associated Community's observer delegate rights are suspended for the duration of the review.

#### **§20.4 Sovereign Mobility**

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact and proceed as a fully independent sovereign nation. No Republic consent is required for compact termination, and the Republic may not impose conditions on or penalties for the decision to terminate. Compact termination takes effect on a date not less than 12 months from the date the Republic receives written notice of termination, to allow orderly transition of any services the compact provides. Where the Associated Community's highest governance authority issues a formal ruling within the 12-month period that the termination decision was invalid under the community's own governance law, the community may withdraw the termination notice; the Republic acknowledges the withdrawal and the compact continues.

#### **§20.5 Reciprocal Obligations and Review**

The compact must specify with particularity the reciprocal obligations of both parties and the review mechanism. The Associated Community holds obligations to the Republic as well as rights from it. Review must be scheduled at regular intervals defined in the compact; either party may request a review outside the schedule by providing written notice to the NRS.

#### **§20.6 Compact Ratification**

A compact with an Associated Community requires Senate ratification by 2/3 of full seated membership, consistent with the treaty ratification threshold under §3.6. Both executives must transmit the proposed compact to the Senate simultaneously with a joint assessment of its consistency with this Article. The JI certification under §20.3 must be published to the NRS before the Senate may hold a ratification vote. A ratified compact takes effect on the date specified in its terms and is registered to the NRS as a public record. Where the executives cannot agree on a joint assessment, each may publish a separate assessment to the NRS; the Senate receives both and may proceed to ratification on that basis.

#### **§20.7 Compact Continuity**

#### **§8.15 Constitutional Officer Removal Framework**

This section governs for-cause removal of all constitutionally confirmed independent officers except Supreme Court justices (§4.1.c) and elected executives. Two removal tracks are available. Under the Standard Track, the charging party files stated grounds with the SC under §8.9; the SC confirms grounds within 14 days; duty suspension activates immediately on confirmation; removal requires a 2/3 vote of both chambers simultaneously; no removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. Under the Judicial

Track, where two of the three Inspectorates jointly certify for-cause grounds and petition the SC, the SC determines within 30 days whether the certified grounds constitute sufficient cause for suspension; if cause is found, the officer is suspended and the most senior deputy acts in the interim; the Senate has 60 days to hold a removal vote, with 3/5 required for permanent removal; a vote failing 3/5 reinstates the officer and closes the process; where the Senate fails to vote within 60 days, the matter is placed before the next federal electoral period ballot or a Legislature-set special election with a minimum 90-day notice period; removal by election requires 60% of votes cast. The Judicial Track is available where the Standard Track's legislative threshold appears unreachable due to demonstrated political gridlock. Officers subject to this framework include Inspector Generals, DIC administrators, MA board members, and all other constitutionally confirmed independent officers. Provisions governing specific offices may cross-reference this section without restating its terms.

Compacts in force at the time of any government transition continue without interruption and bind successive governments of the Republic. No election result, change in the Republic's internal constitutional arrangements, or government transition affects the validity or standing of a compact in force. A new government may initiate renegotiation of a compact through the process the compact specifies but may not unilaterally suspend, modify, or withdraw from a compact pending renegotiation.